

24NWCV01429 24NWCV01429

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ANA ACEVEDO, ET AL. v. EFREN LOPEZ FARFAN, ET AL.

CASE NO.: 24NWCV01429

HEARING: 09/18/2026 @

9:30 AM

#11

TENTATIVE ORDER

Petitioner Ana Acevedo's petitions to approve compromises of claims for minor claimants Dolores Acevedo, Andrew Acevedo, Ezekiel Acevedo, Ana Maria Acevedo, and Abraham Acevedo are GRANTED.

Moving party to give notice.

There are five Petitions on calendar: Petitioner Ana Acevedo (Petitioner) petitions to approve compromises of claims for minor claimants (1) Dolores Acevedo, (2) Andrew Acevedo, (3) Ezekiel Acevedo, (4) Ana Maria Acevedo, and (5) Abraham Acevedo (collectively, Claimants).

Background

On May 6, 2024, Plaintiffs Ana Acevedo; Isaiah Acevedo; Dolores Acevedo, Andrew Acevedo, Ezekiel Acevedo, Ana Maria Acevedo, Abraham Acevedo, and Israel Acevedo, minors by and through their Guardian ad Litem, Ana Acevedo (collectively, Plaintiffs) filed this habitability action against

Defendants Efren Lopez Farfan, Suilma Lopez Farfan (Defendants), and Does 1 through 50 regarding their former tenancy at 9108 Bluford Avenue, Whittier CA 90602 (Property). The complaint alleges that the Property was untenable as a result of failure to repair conditions, including on May 6, 2022, after a fire caused by a defective electric system caused the Property to become completely uninhabitable and forced Plaintiffs to move out of the Property. (Complaint, ¶¶ 10-12.) The complaint asserts four causes of action: (1) failure to provide habitable dwelling, (2) breach of covenant and right to quiet enjoyment and possession of the property, (3) nuisance, and (4) negligence.

On August 4, 2026, Plaintiffs filed a Notice of Settlement indicating the parties entered into a conditional settlement agreement.

On August 18, 2026, the Court granted Plaintiffs' ex parte application to specially set the instant Petitions to today's date to be heard concurrently.

Legal Standard

A Petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability must conform with Code of Civil Procedure section 372 and Probate Code sections 2504 and 3600 et seq. (Cal. Rules of Court, rule 7.950.) Such a petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise." (Cal. Rules of Court, rule 7.950.) Moving papers should include the Petition of Guardian Ad Litem for Compromise of Disputed Claim of Minor or Person with Disability (Petition) on Form MC-350 and an Order Approving Compromise of Minor's Claim (Order) Form MC-351.

Discussion

Petitioner files this Petition on behalf of Claimants Dolores, a minor, age 12; Ana Maria, a minor, age 13; Ezekiel, a minor, age 14; Abraham, a minor, age 14; and Andrew, a minor, age 15. Petitioner provides Petitions on Form MC-350 and Proposed Orders on Form MC-351. These Petitions are unopposed.

Based on the similarities between the Petitions, the Court will review them jointly in this ruling and note any relevant differences.

Allocation

Defendants will pay \$102,000 to Plaintiffs in exchange for release of all claims arising out of the tenancy that Plaintiffs assert against them. (Pet., ¶ 10; Attach., 10c.) Each minor Claimant will be paid \$3,333.33. (Pet., ¶ 10.) Of the total settlement proceeds, Defendants are paying \$62,000.02 to Petitioner and \$20,000 to Isaiah because of their special damages. (Pet., ¶ 11; Attach, 11b(6).) Defendants are paying \$3,333.33 to Israel who was a minor at the time of the subject incident and turned 18 in 2025. (Pet., ¶ 11; Attach, 11b(6).)

Each claimant will receive \$2,000 in net recovery. (Pet., ¶ 16.) While this amount is low, the Court finds the allocation fair and reasonable as Claimants do not have medical expenses and did not receive any care for their emotional distress injuries.

Medical Expenses

Petitioner is not claiming any medical expenses for Claimants. (Pet., ¶ 12a.)

Attorney's Fees & Costs

The Petitions each seek \$1,333 in attorney's fees from each Claimant. (Pet., ¶ 13.) The Petition includes a declaration from Plaintiffs' counsel Chandra Gehri Spencer. (Pet., Attach., 13a.) The requested amount is based on a 40% contingency fee for all Plaintiffs including the minor Claimants. (Spencer Decl., ¶ 10.) Plaintiffs' counsel provides the Representation Agreement in which Plaintiffs agreed to a 40% contingency fee. (Pet., Attach., 17a.)

The Petition indicates that none of the minor Claimants, including Israel, will be paying any costs. (Pet., Attach., 11b(6).)

Following deductions for attorney's fees, each Claimant will receive \$2,000. Based on the declaration of counsel and information provided in this Petition, the Court finds this amount reasonable.

Disposition
of Settlement Funds

The Petition requests each Claimant's recovery to be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization by the Court. (Pet., ¶ 18b(2).) Petitioner provides the relevant information in Attachment 18b(2).

Additional
Orders

There are no additional orders.

Deficiencies

The hearing date has not been updated in the Proposed Orders.

Conclusion

Based on the foregoing, the Court finds the Petitions are fair and reasonable.

Petitioner Ana Acevedo's petitions for approval of minor's compromise are APPROVED. The Court will sign the Proposed Orders concurrently filed with the Petition.